

24STCV24999 24STCV24999

County: los-angeles

Division: Civil Law and Motion

Department: 407

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Case Number: 24STCV24999 Hearing Date: September 14, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: September

14, 2026 TRIAL DATE: September 16, 2026

CASE: Brayan

Romero v. Roberto Menjivar, et al.

CASE NO.: 24STCV24999

DEFENDANTS'

MOTION IN LIMINE #1 TO EXCLUDE PLAINTIFF'S EXPERTS

I. INTRODUCTION

This is a motor vehicle negligence action. On August 31, 2026, Defendants, Roberto Menjivar, Jennifer Cammack, and AJ Portables, Inc., filed this motion in limine to exclude Plaintiffs' experts, Brandon Bourdage and Jonathan Eskenazi, M.D., under Code of Civil

Procedure section

2034.300 for failure to appear for a deposition prior to trial.

At the time of this

writing no opposition or reply had been filed.

II. LEGAL STANDARD

A motion in limine must present the specific evidence sought to be excluded. “Until the evidence is actually offered, and the Court is aware of its relevance in context, its probative value, and its potential for prejudice, matters related to the state of the evidence at the time an objection is made, the Court cannot intelligently rule on admissibility.” (Kelly v. New West Federal Savings (1996) 49 Cal.App.4th 659, 671.) Instead of a motion in limine, the proper procedure is to make an objection at the time the evidence is offered, which serves to focus the issue and to protect the record. (Id.)

Accordingly, a motion in limine must specify the evidence, clearly state the exclusion, and explain why it applies.

Further, Local Rule 3.57(a) requires that motions made for the purpose of precluding the mention or display of inadmissible and prejudicial matter in the presence of the jury must be accompanied by a declaration that includes the following:

1. Specific identification of the matter alleged to be inadmissible and prejudicial;

2. A representation to the court that the subject of the motion has been discussed with opposing counsel, and that opposing counsel has either indicated that such matter will be mentioned or displayed in the presence of the jury before it is admitted in evidence or that counsel has refused to stipulate that such matter will not be mentioned or displayed in the presence of the jury unless and until it is admitted in evidence;

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3. A statement of the specific

prejudice that will be suffered by the moving party if the motion is not granted; and¿¿¿

4. If

the motion seeks to make binding an answer given in response to discovery, the declaration must set forth the question and the answer and state why the use of the answer for impeachment will not adequately protect the moving party against prejudice in the event that evidence inconsistent with the answer is offered.

III. DISCUSSION

Here, the parties

made timely expert designation exchanges on August 10, 2026. (Grandy Decl., ¶ 3, Ex. B.) As relevant here, Plaintiff designated neurologist Jonathan Eskenazi, M.D., and biomechanical engineer Brandon Bourdage. (Grandy Decl., Ex. C.) On August 13, 2026, Defendants noticed the depositions of Plaintiff's experts for September 1 and 2, 2026. Plaintiff served timely written objections to the depositions notices and stated, without providing alternative deposition dates, that his experts would not be produced for deposition on the noticed dates. Defense counsel requested deposition dates. After Plaintiff's counsel did not respond, Defendants re-set the depositions for September 4, 2026 and sent notice of the same on August 26, 2026.

"Any party may demand a mutual and simultaneous exchange by all parties of a list containing the name and address of any natural person, including one who is a party, whose oral or deposition testimony in the form of an expert opinion any party expects to offer in evidence at the trial."¿ (Code Civ. Proc., § 2034.210(a).)¿"The specified date of exchange shall be 50 days before the initial trial date, or 20 days after service of the demand, whichever is closer to the trial date, unless the court, on motion and a showing of good cause, orders an earlier or later date of exchange." (Code Civ. Proc., § 2034.230(b).) The exchange of expert witness information shall include either of the following: (1) a list setting forth the

name and address of a person whose expert opinion that party expects to offer in evidence at the trial, or (2) a statement that the party does not presently intend to offer the testimony of an expert witness.¿ (Code Civ. Proc., § 2034.260(b).)¿

On objection of any party who has made a complete and timely compliance with Section 2034.260, the trial court shall exclude from evidence the expert opinion of any witness that is offered by any party who has unreasonably failed to make that expert available for a deposition, among other things.¿ (Code Civ. Proc., § 2034.300(d).)¿ “Failure to comply with expert designation rules may be found to be ‘unreasonable’ when a party’s conduct gives the appearance of gamesmanship.” (Staub v. Kiley (2014) 226 Cal.App.4th 1437, 1447.)¿

IV. CONCLUSION

Based on the foregoing,
the motion is GRANTED. Plaintiff is
precluded from presenting at trial the testimony of his experts Jonathan Eskenazi, M.D., and Brandon Bourdage.

Moving party to give notice.

Dated: September 14,
2026

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¿ Brock T. Hammond

¿ Judge of the Superior Court¿